June 2024

MOTIVATION STATEMENT BY HON. KLETUS KARONDO, MP (CHAIRPERSON)

PARLIAMENTARY STANDING COMMITTEE ON CONSTITUTIONAL AND LEGAL AFFAIRS

ON THE

OVERSIGHT VISITS OF COMMUNITY COURTS AND MAGISTRATES COURTS IN

KUNENE, OHANGWENA, OMUSATI, OSHANA, ZAMBEZI AND OTJOZONDJUPA REGIONS

MAY TO AUGUST 2022

June 2024

Hon. Speaker,

Hon. Members,

Thank you for the opportunity to table another report, this one focusing on the **OVERSIGHT VISITS OF COMMUNITY COURTS AND MAGISTRATES COURTS IN KUNENE, OHANGWENA, OMUSATI, OSHANA, ZAMBEZI AND OTJOZONDJUPA REGIONS**

The report provides an account on progress regarding the implementation of the Community Courts Act, Act 10 of 2003 because it is the duty of parliamentary committees to perform, parliamentary oversight of public policies, existing legislation (like this one) and the activities and programmes of our Government.

The report provides a synopsis of the achievements, constraints and challenges faced by Traditional Authorities with the implementation and enforcement of the Community Courts Act and further reveals some teething problems that the Ministry of Justice (Division Community Courts), traditional authorities and community court officials are faced with.

The good news comprises of the following:

1. Most community courts are gradually achieving their mandate because the communities they serve are satisfied with the operations of community courts and they make optimal use of these courts. In some areas, it is the preferred dispute resolution mechanism because there is some form of compensation for the plaintiff.

2. In some areas, it is the preferred dispute resolution mechanism as the complainant could be rewarded in kind, for damages or harm caused.

3. Community courts serve an important function and role in the country, similar to the common law courts and statutory bodies in government. Furthermore, community courts have an important national function to encourage peaceful communities through reducing crime.

The above mentioned highlights of community court achievements are however, blighted by economic hardships, and poor conditions of service of community court officials as well as the downgrading of allowances to justices and assessors. In addition,

4. Insufficient budget allocations to community courts, inadequate community courts in particularly wide geographical areas, the size of the population in the community court jurisdiction and long distances covered by citizens to reach the courts amongst others are matters of serious concern that needs urgent attention.

5. There are some sections in the Community Courts Act that hamper the efficient and effective operations of the community courts, they include sections 5, 6, 8 (a) - (d), 20 and 23 of the Act.

Hon. Speaker,

Hon. Members,

Observation

1. It is the view of the Committee that the services provided by community courts could be compared to other statutory bodies in the country. Therefore downgrading community courts negatively impact on administration of justice as contemplated in Chapter 9 of the Constitution and administrative justice under Article 18 of the Constitution.

2. The perception that the powers and functions of Traditional Authorities were taken over by the Community Courts Act, is real and a matter of concern to the Standing Committee.

3. The Committee observes that if minor disputes and petty cases should be arbitrated at village level by headmen expenses with respect to travel cost, subsistence and accommodation by community members will be considerably reduced.

Hon. Speaker,

Hon. Member,

It is important to take you through the Recommendations:

1. The Standing Committee recommends that the Minister of Justice must expedite the tabling of the amended or repealed Community Courts Bill in the National Assembly. When drafting the new Bill, the Ministry should have due consideration for the inclusion of previous findings and recommendations by the predecessor Committee of the 6th National Assembly, the findings and recommendations contained in this report and the High Court judgement in the Hiskia case.

2. The Minister of Justice must act upon the findings and observations based on the weaknesses, shortcomings and challenges of the community court system.

3. There is a recommendation that the Community Courts Act should resort under the Ministry of Urban and Rural Development under which the Traditional Authorities also resort for effectiveness in traditional affairs. The Ministry of Justice, Ministry of Urban and Rural Development and Council of Traditional Leaders must consider the implementation of this recommendation.

4. The Committee further recommends that the Minister of Justice must implement the recommendations 6.4 (a) to (l) listed in the report.

5. The Minister of Home Affairs, Immigration, Safety and Security and the Minister of Justice must review the Police Act, Act 19 of 1990 and Community Courts Act to **formalize** the provision of police services and assistance including court orderly services by the Namibian Police to the community courts in Namibia, the same way as it is done at Magistrates Courts and superior courts,

I SO MOVE HONOURABLE SPEAKER